

September 13, 2018



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20783

EXPIRATION DATE: 2019-02-28

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Pipeline and Hazardous Materials Safety
Administration
Washington, DC
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of DOT Specification cylinders containing flammable gas. Transportation is authorized without to the use of placards, shipping papers or requiring hazmat employees to be trained. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subparts C, F, and H in that shipping papers, placarding, and training are not required.

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5. BASIS: This special permit is based on the application of Pipeline and Hazardous Materials Safety Administration dated September 07, 2018, submitted in accordance with § 107.117 and the determination that it is necessary to protect life and property.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Compressed gas, flammable, n.o.s.	2.1	UN1954	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are DOT specification cylinders conforming to all requirements of 49 CFR Part 178.

b. TESTING: Cylinders must be periodically inspected in accordance with the applicable requirements of Part 180.

c. OPERATIONAL CONTROLS:

(1) The shipping paper requirements of 49 CFR Subpart C do not apply.

(2) The placarding requirements of 49 CFR Subpart F do not apply.

(3) The training requirements of 49 CFR Subpart H do not apply; however each person involved in the pre-transportation preparation as well as transportation of the material must be aware of:

(i) The necessary measures to protect them from the hazards associated with the hazardous materials; and

(ii) Proper procedures for handling packages containing the hazardous materials.

(4) One-way, one-time transportation is authorized from

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Florida to New Mexico for the purpose of testing of the gas samples.

8. SPECIAL PROVISIONS: Operations under this special permit are limited to persons acting under the direction the Pipeline and Hazardous Materials Administration.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits

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and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode